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Secretary of State.
FEB 8 1902

No.523

EMBASSY OF THE UNITED STATES.

St.Petersburg, February 3, 1902.

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FOR RELS. 1902.

Mr.Tower

To the Honorable John Hay,

Secretary of State,

Subject:- Acknowledges the receipt of the Department's cipher telegram of the 1st of February and confirms his reply thereto dated February 3rd. Also transmits a copy of a Note addressed to the Imperial Russian Foreign Office relating to the signature of a Convention granting certain privilages to the Russo-Chinese Bank.

INDEX BUREAU
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No. 523

EMBASSY OF THE UNITED STATES.

St.Petersburg,February 3,1902.

To the Honorable

John Hay,

Secretary of State,

Washington,D.C.

Sir:-

I have the honor to enclose to you herewith a deciphered copy of your cipher telegram of the 1st of February, in regard to a report made by the United States Minister in China of certain exclusive privileges about to be granted by the Chinese Government to the Russo-Chinese Bank;also a copy of the text of my cipher telegram to you, dated the 3rd of February, in reply.

In accordance with your instructions, I addressed at once a note to the Count Lamsdorff, Imperial Russian Minister for Foreign Affairs, communicating to him the contents of your telegram, and I now respectfully enclose to you herewith a copy of that note.

I have the honor to be, Sir,

Your obedient servant,

Charlemagne Tower,

COPY.

EMBASSY OF THE UNITED STATES.

St.Petersburg,February 3,1902.

Mr.Minister for Foreign Affairs:-

In obedience to instructions which I have received from the Government of the United States, I have the honor to inform Your Excellency that the American Minister to China has reported, in a telegram recently received at Washington, that Prince Ching has agreed to sign the Manchurian Convention and also a separate Convention with the Russo-Chinese Bank under which exclusive privileges of industrial development in Manchuria are to he granted to that Bank.

I am instructed to say that the Government of the United States could look only with concern upon any arrangement by which China should extend to a corporate company the exclusive right within its territory to open mines, construct railways or to exert other industrial privileges.

It is the belief of the Government of the United States that by permitting or creating a monopoly of this character China would contravene the treaties which it has already entered into with foreign Powers and would injure the rights of American citizens by restricting legitimate trade; also that such action would lead to the impairment of Chinese sovereignty and tend to diminish the ability of China to meet its obligations. Other Powers as well might be expected to seek similar exclusive advantages in different parts of the Chinese Empire, which would destroy the policy of equal treatment of all nations in regard to navigation and commerce throughout China.

I am further instructed to convey to Your Excellency the sentiment of the United States Government that the acquiring by any one Power of exclusive privileges in China for its own subjects or its own commerce would be contra-

dictory to the assurances repeatedly given by the Imperial Russian Ministry for Foreign Affairs to the United States of the intention of the Russian Government to maintain the policy of the Open Door in China as that policy has been advocated by the United States and accepted by all the Powers whe have commercial interests within the Chinese Empire.

I am to assure Your Excellency that the Government of the United States is now, as it has always been heretofore, animated by the desire to secure for all nations entirely equal intercourse with China, and I am instructed to present to Your Excellency the request that the Imperial Russian Government will give due attention to the foregoing considerations, which have also been addressed to the Chinese Government, and to express to Your Excellency the hope that such measures of procedure may be adopted as will allay the apprehensions of the Government of the United States.

I avail myself of this occasion to renew to Your Excellency the assurance of my high consideration.

(signed) Charlemagne Tower.

To His Excellency

Count Lamsdorff,

— Imperial Minister for Foreign Affairs,

etc., etc., etc.,

Translation of a cipher telegram received
on February 2,1902.

WASHINGTON,February 1,1902.

TOWER, AMBASSADOR.

"February 1,-5 P.M.- Minister to China cables that "Prince Ching has agreed to sign Mancharian Convention and "also separate convention with Russo-Chinese Bank conced- "ing exclusive privileges industrial development in Man- "churia, An agreement by which China concedes to a corpora- "tion the exclusive right to open mines, construct rail- "ways or other industrial privileges can only be viewed "with concern by the Government of the United States. To "suffer monopoly would distinctly contravene treaties of "China with foreign Powers, affect rights of citizens of "the United States by restricting rightful trade and tend "to impair sovereign rights of China and diminish her abi- "lity to meet international obligations. Other Powers will "prcbably seek similar exclusive advantages in other parts "of Chinese Empire which would wreck the policy of abso- "lutely equal treatment of all nations in regard to navi- "gation and commerce in the Chinese Empire. For one Po- "wer to acquire exclusive privileges for its . . . . ". . . conflicts with assurances repeatedly given to "this Government by Russian Ministry for Foreign Affairs "of firm intention to follow the policy of the Open Door "in China, as advocated by the United States and accepted "by all the Powers having commercial interests in China. "Animated now as heretofore by the sincere desire to in- "sure to the whole world full and fair intercourse with "China on equal footing, the Government of the United State "submits the foregoing considerations to the Governments "of Russia and China with confidence that due weight will "be given to them and such measures be adopted as will re-

"lieve the just and natural anxiety of the United States.
"You will communicate paraphrase of the above to Imperial
"Minister for Foreign Affairs.

HAY".

Translation of a cipher telegram sent
on February 4,1902.

EMBASSY OF THE UNITED STATES.
St.Petersburg,February 4,1902.

"SECSTATE, - WASHINGTON.

"I have communicated to the Russian Government the
"contents of your cipher despatch relating to Manchuria.

TOWER".